

make burrows in other places than hath been used from the time of which, &c. unless he hath warren by grant, and then he may use it according to his grant; but he cannot erect a new warren without charter.

4. It was resolved, that he who hath such a warren may lawfully build upon his inheritance, within his warren, a convenient lodge for preservation of his game.

5. It was said by Popham, Chief Justice, that it was adjudged in the time of the Chief Baron Brett, in the Exchequer, that a man may prescribe to cut his wood upon his own inheritance within a forest (B), although it was against the Act in the 43 Ed. 1. which is in the Abridgment, title [23] Forest 21. And this was the case of Sellenger, for cutting wood in the forest of Hay, in the county of Hereford: and their reason was for that this was but a declaration of the common law, and it may be tolled by custom, as Littleton said; *vide* 2 Ed. 2. title Trespass, fol. 9. in the time of Ed. 1. Trespass 239. Plowd. Com. Dyer 72. 332. 2 Ed. 4. cap. 7. that the subject may have a forest: but this is intended if he hath power to have swannymotes and justices in eyre and foresters appendant to the forests (C).

*Consuetudo ex rationabili causa usitata privat communem legem*: and it was held by some that this was but an ordinance, and not any Act of Parliament. Q.

### [23] FLOYD AND BARKER.

Pasch. 5 Jacobi Regis.

In the Star-Chamber.

[*Kemp v. Neville*, 1861, 10 C. B. N. S. 550; *Dawkins v. Lord Rokeby*, 1873-75, L. R. 8 Q. B. 263.]

When a grand inquest indicts one of murder or felony, and after the party is acquitted, no writ of conspiracy lies for him against the indictors.

If a witness conspire out of Court, and afterwards swear in the Court, the party acquitted may have a writ of conspiracy against him.

When a party indicted is convicted of felony, upon not guilty pleaded, he shall never have a writ of conspiracy.

Where a party is convicted or attainted of murder or felony, none of the parties to the proceedings are to be drawn in question in the Star-Chamber, or elsewhere, for any conspiracy.

Nor in such cases shall a Judge be charged before any other Judge at the suit of the King.

Records are of so high a nature, that for their sublimity they import verity in themselves, and none shall be received to aver any thing against the record itself.

*Vide post.* 32. 91, 92. 99. &c. 1 Hawk. ch. 72. *per totum*.

In this very term, between Rice ap Evan ap Floyd, and Richard Barker, one of the justices of the grand sessions in the county of Anglesey, and other defendants: it was resolved by Popham and Coke, Chief Justices, the Chief Baron, and Egerton, Lord Chancellor, and all the Court of Star-Chamber, that when a grand inquest indicts one of murder or felony, and after the party is acquitted, yet no conspiracy (A) lies for him who is acquitted, against the indictors, for this that they are returned by the

(B) In Jenk. Cent. 230. it is said, that the owner of a freehold in a wood, in a forest, may cut down any wood there without the licence or view of the forester *without a prescription*. But this is contrary to Co. Litt. 115 a., and appears not to be law. *Such a prescription* is, it seems, good; but it has been denied. *Vid.* Mr. Hargrave's note (15). Co. Litt. 115 a.

(C) N. B. "In 4 Inst. 298. is an accurate account of these resolutions: but what is here reported as the fifth resolution, is there totally omitted."—*Note in Serjt. Hill's copy.*

(A) *Vid.* note (B) *The Poulterers' case*, 9 Co. 57 a.

sheriff by process of law to make inquiry of offences upon their oath, and it is for the service of the King and the commonwealth. And as it is said in the 10 El. 265. they are compellable to serve the law, and the Court: and their indictment or verdict is matter of record, and called *Verdictum*, and shall not be avoided by surmise or supposal, and no attainit lies. And for this reason they shall not be impeached, for any conspiracy or practice, before the indictment: for the law will not suppose any unindifferent, when he is sworn to serve the King: and with this agrees the books in 22 Ass. 77. Assise, p. 12. 21 Ed. 3. 17. 16 H. 6. 19. 47 Ed. 3. 17. 27 H. 8. 2. F. N. B. 115 a. But it is otherwise of a witness; for if he conspire out of the Court, and after swear in the Court, his oath shall not excuse his conspiracy before; for he is a private person, produced by the party, and not returned by the sheriff, who is an officer sworn, and the jurors are sworn in Court as indifferent persons: and the law presumes, that every juror will be indifferent when he is sworn, nor will the law admit proof against this presumption.

2. It was resolved, that when the party indicted is convict of felony by another jury, upon "not guilty pleaded," there he never shall have a writ of conspiracy, but when the party upon his arraignment is *legitimo modo acquietatus*: but in the case at the Bar, the grand jury who indicted one William Price for the murder of Hugh ap William, the jury, who upon not guilty pleaded, convicted him, were charged in the Star-Chamber for conspiracy against him, and indicted and convicted, which manner of complaint was never seen before: for if the party shall not have a conspiracy against the indictors, when the prison is acquitted upon his indictment, *a multo fortiori* when he is lawfully convict, he shall not charge neither the grand inquest by whom he was indicted, nor the jury who found him guilty: for the law in such case doth not give any attainit (B), for this that he was indicted by the oath of twelve men at the least, and found guilty by twelve: and in these cases, the King is the sole party to the proceedings against the prisoner: but on the other side, when a jury hath acquitted a felon or traitor against manifest proof, there they [24] may be charged in the Star-Chamber, for their partiality in finding a manifest offender not guilty, *ne maleficia remanerent impunita*. And it will be a cause of infinite vexation and occasion of perjury and smothering of great offences, if such averments and supposals shall be admitted after ordinary and judicial proceeding: and it will be a means *ad deterrendos et detrahendos juratores a servitio Regis*.

3. It was resolved that the said Barker who was Judge of Assise, and gave judgment upon the verdict of death, against the said W. P. and the sheriff who did execute him according to the said judgment, nor the justices of peace who did examine the offender, and the witnesses for proof of the murder before the judgment, were not to be drawn in question in the Star-Chamber, for any conspiracy, nor any witness, nor any other person ought to be charged with any conspiracy in the Star-Chamber, or elsewhere, when the party indicted is convicted or attainit of murder or felony: and although the offender upon the indictment be acquitted, yet the Judge, be he Judge of Assise, or a justice of peace, or any other Judge, being Judge by commission and of record, and sworn to do justice, cannot be charged for conspiracy, for that which he did openly in Court as Judge or justice of peace: and the law will not admit any proof against this vehement and violent presumption of law, that a justice sworn to do justice will do injustice; but if he hath conspired before out of Court, this is extrajudicial; but due examination of causes out of Court, and inquiring by testimony, *et similia*, is not any conspiracy, for this he ought to do; but subornation of witnesses, and false and malicious prosecutions, out of Court, to such whom he knows will be indictors, to find any guilty, &c. amounts to an unlawful conspiracy.

And records are of so high a nature, that for their sublimity they import verity in themselves; and none shall be received to aver any thing against the record itself; and in this point the law is founded upon great reason; for if the judicial matters of record should be drawn in question, by partial and sinister supposals and averments of offenders, or any on their behalf, there never will be an end of causes: but controversies will be infinite; *et infinitum in jure reprobatum*: and for this it is adjudged in

the 47 Ed. 3. 15. that a Judge who hath a commission, viz. that is of record, shall not be charged in conspiracy; which is to be understood of what he did in Court, for the reasons and causes aforesaid: and with this agree the books, 21 Ed. 4. 67. & 27 Ass. pl. 12. and the reason is for this, that though the party is acquitted, yet the accusing stands with the record: and accordingly was the law taken in this case. But in an hundred-court, or other Court which is not of record, there averment may be taken against their proceedings, for that it is no other than matter *in pais*, and not of record; as it appears in the 47 Ed. 3. 15. Also one shall never assign for error, against that which the Court doth as Judges; as to say, that the jury gave verdict for the defendant, and the Court did enter it for the plaintiff, or to say that the party who levied the fine was dead before the fine was levied, or such like. *Vide* 1 H. 6. 4. 39 H. 6. 52. 7 H. 7. 11 H. 7. 4. 28. 1 Mar. Dyer 89. But in a writ of false judgment, the plaintiff shall have a direct averment against that which the Judges in the Inferior Court have done as Judges, *quia recordum non habent*; and with this accords 21 H. 6. 34. And as a Judge shall not be drawn in question in the cases aforesaid, at the suit of the parties, no more shall he be charged in the said cases before any other Judge at the suit of the King. And for this in the 27 Ass. pl. 18. one was indicted and arraigned at the suit of the King, that as he was a justice of oyer and terminer, where certain persons were indicted [25] of trespass before him, he made an entry of record, that they were indicted of felony: and it was adjudged that this indictment was against the law, for this that he was a justice by commission; and that is of record; and this present Act shall be to defeat the record, *hoc est*, to aver against that which he did as Judge of Record, which cannot be by the law. *Vide* 27 Ass. pl. 23. 2 R. 3. 9. 28 Ass. pl. 21. 9 H. 6. 60. And it was said, that it was the case of one Nudigate, who as a justice of peace had recorded a force upon a view, which he did as Judge upon record; and a bill was exhibited against him in this Court, for this, that he had falsely made a record, where indeed there was not any force: and by the opinion of Catlyn and Dyer, Chief Justices, it was resolved, that that thing, that a Judge doth as Judge of Record, ought not to be drawn in question in this Court (c).

Note well, that the said matters done at the Bar were not examinable in the Star-Chamber; and for this it was ordered and decreed by all the Court, that the said bill without any answer to it, by the said Richard Barker, shall be taken off the file and cancelled, and utterly defaced: and it was agreed, that inasmuch as the Judges of the realm have the administration of justice, under the King, to all his subjects, they ought not to be drawn into question for any supposed corruption, which extends to the annihilating of a record, or of any judicial proceedings before them, or tending to the slander of the justice of the King, which will trench to the scandal of the King himself, except it be before the King himself; for they are only to make an account to God and the King, and not to answer to any suggestion in the Star-Chamber; for this would tend to the scandal and subversion of all justice. And those who are the most sincere, would not be free from continual calumniation, for which reason the orator said well, *in vigilandum est semper, multe insidie sunt bonis*.

And the reason and cause why a Judge, for any thing done by him as Judge, by the authority which the King hath committed to him, and as sitting in the seat of the King (concerning his justice) shall not be drawn in question before any other Judge, for any surmise of corruption, except before the King himself, is for this; the King himself is *de jure* to deliver justice to all his subjects; and for this, that he himself cannot do it to all persons, he delegates his power to his Judges, who have the custody and guard of the King's oath.

And forasmuch as this concerns the honour and conscience of the King, there is great reason that the King himself shall take account of it, and no other.

And Thorp's judgment, who was drawn in question for corruption before commissioners\*, was held against the law, and upon that he was pardoned; and it is

(c) *Vid. acc. Basten v. Carew*, 3 Barn. and Cress. 649. S. C. 5 Dow. and Ryl. 558. *Vid. also note (a) The Marshalsea case*, 10 Co. 76 a.

\* See Cotton's Records 74. 316. That Thorp's judgment was by Parliament adjudged just and legal: but in truth the whole set of Judges were then so corrupt that the King was forced to try him by commission.—*Note to former edition.*

contained in the same record, *quod non trahitur in exemplum*. *Vide* the conclusion of the oath of a Judge. *Vide* the Chronicle of Stow, 18 Edw. 3. 312.

Note; Thomas Weyland, Chief Justice of the Common Bench, Sir Ralph Hengham, Justice of the King's Bench; and the other justices, were accused of bribery and corruption; and their causes were determined in Parliament, where some were banished, and some were fined and imprisoned.

*Vide* 2 Ed. 3. fol. 27. That the Justices of Trayl-baston (so called for their summary proceeding) were in a manner justices in eyre; and their authority was founded upon the Stat. of Ragman, which you may see in the old Magna Charta. *Vide* the form of the commission of the [26] Trayl-baston, Hollingshead, Chron. fol. 312. And note; it appears by the said precedent and chronicle, that the King did examine the corruption of his Judges before himself in the Parliament, and not by force of any commission.

*Absurdum est affirmare, (re judicata) credendum esse non judici.*

## [26] OF OATHS BEFORE AN ECCLESIASTICAL JUDGE EX OFFICIO.

The Ordinary cannot constrain any man, ecclesiastical or temporal, to swear generally to answer such interrogatories as shall be administered to him.

No man, ecclesiastical or temporal, shall be examined upon secret thoughts, or secret opinions.

The Ecclesiastical Judge ought not to examine *partem ream* upon their oath.

Note.—The kingly dignity is an inherent inseparable to the Royal blood of the King; and cannot be transferred to another, no more than a duke, or earl, or baron, may transfer over their dignities, for these are incidents inseparable.

The law and customs of England are the inheritance of the subject, which he cannot be deprived of without his assent in Parliament.

Note; Pasch. 4 Jacobi, in the time of the Parliament, the Lords of the Council of Whitehall demanded of Popham, Chief Justice and myself, upon motion made by the Commons in Parliament, in what cases the Ordinary may examine any person *ex officio* upon oath; and, upon good consideration and view of our books, we answered to the Lords of the Council at another day in the Council-Chamber.

“1. That the Ordinary cannot constrain any man, ecclesiastical or temporal, to swear generally to answer to such interrogatories as shall be administered unto him; but ought to deliver to him the articles upon which he is to be examined, to the intent that he may know whether he ought by the law to answer to them: and so is the course of the Star-Chamber and Chancery; the defendant hath the copy of the bill delivered unto him, or otherwise he need not to answer to it\*.

“2. No man ecclesiastical or temporal shall be examined upon secret thoughts of his heart, or of his secret opinion: but something ought to be objected against him what he hath spoken or done. No lay-man may be examined *ex officio*, except in two causes, and that was grounded upon great reason; for lay-men for the most part are not lettered, wherefore they may easily be inveigled and entrapped, and principally in heresy and errors of faith: and this appears by an ordinance made in the time of Edward I. tit. Prohibition, in Rastal.”

The words of which ordinance are, and *quod non permittant quod alioqui laici in balliva sua in aliquibus locis conveniantur, ad aliquas recognitiones per juramenta sua faciendos, nisi in causis matrimonialibus et testamentariis*. And the reason that the Ecclesiastical Judge shall examine them in these two cases, is for this, that contracts of matrimony, and the estates of the dead, are many times secret; and they do not concern the shame and infamy of the party, as adultery, incontinency, usury, simony, hearing of mass, heresy, &c.

And for this cause in these cases, and such like, the Ecclesiastical Judge ought

\* Note, this *ex officio* oath is since abrogated by stat. 16 Car. 1. c. 2. sect. 4. & 13 Car. 2. c. 12. sect. 4. See Gibson's Codex 56. 58. 407. 999. 1053.—*Note to former edition.*